



A PRACTICAL ETHICS TOOLKIT

Bobir Muratov

Heidelberg University Cadaver Case



- Engineers must hold “paramount the safety, health, and welfare of the public”
- But does this directive imply that cadavers should be used for crash testing, or does the consideration of human dignity override considerations of health, welfare, and safety in this case?

Toolbox



Factual Issues

- Questions about what the facts are
- Many apparent moral disagreements turn out to be disagreements over the relevant facts
- Factual issues are sometimes very difficult to resolve
- Sometimes we must make decisions about important moral issues, even though some of the relevant factual issues cannot be resolved

Conceptual Issues

- Questions about the meanings of terms
 - human dignity
 - informed consent
 - conflict of interest
 - bribery
- But sometimes the meanings of some terms are open ended
- And we decide on paradigms

How Concepts Apply: Application Issues

- Claim about whether a given term or expression applies to an individual action, or a general practice
- Disagreements over application issues can occur when there is disagreement over conceptual, factual, and application issues
- Whether using cadavers for testing can be considered an example of respecting human dignity?

Line Drawing

- “Morally laden” issue – we have already decided that an action is wrong
- Lie, bribery, murder
- To resolve the application issue is to justify a moral judgment about the action
- But sometimes we have to balance against other moral considerations



Paradigm Bribe VS Paradigm Non-Bribe

BOX 2.2 Paradigm Case of Bribery

Gift size	Large (\$10,000)
Timing	Before decision to buy
Reason	Personal gain
Responsibility	Sole
Product quality	Lowest in the market
Product cost	Highest in the market

Line Drawing

BOX 2.3 Line-Drawing Analysis of Whether Accepting the Vendor's Offer is a Case of Bribery

	<i>Paradigm Bride</i>	<i>Test Case</i>	<i>Paradigm Non-Bribe</i>
Gift Size	Large		Small
Timing	Before		After
Reason	Personal		Professional

Features to Consider

- Whether accepting the offer confirms to industry-wide practice
- Whether accepting the vendor's offer would conform to company policy
- Whether really useful information will be offered at the Technical Forum
- Whether it will be generally known that the offer of the trip was made after the decision to purchase the vendor's product
- Whether accepting the vendor's offer might influence Victor or others to make unethical decisions in the future

Conflicting Values: Creative Middle-Way Solutions



Obligations to Consider

- Engineers hold paramount the safety, health, and welfare of the public (Canon 1)
- Act in professional matters for each employer or client as faithful agents or trustees (Canon 4)
- Has a legitimate interest in preserving and promoting his own career and protecting the interests of his family, if he has one

Solutions

- Brad could go to his supervisor again and suggest in the most tactful way possible that he is uncomfortable about the fact that his designs are not being properly checked, and get his supervision (if he agrees)
- Brad might talk to others in the organization to help him persuade his supervisor
- Brad could find another job, then reveal the information to the state registration board for engineers or to others who could stop the practice
- Brad might tell his supervisor that he does not believe he can continue to engage in design work that is beyond his abilities and experience and that he might have to consider changing jobs
- Brad could go to the press or his professional society and blow the whistle immediately

Common Morality

- The stock of common moral beliefs which most people in our culture, and perhaps people generally, accept
- Universalization Principle - we must be willing for others to do what we do in similar situations

BOX 2.4 Ross's Prima Facie Duties

- R1. Duties resting on previous acts: (a) Duties of fidelity (to keep promises and not to tell lies), (b) Duties of reparation for wrong done
- R2. Duties of gratitude (e.g., to parents and benefactors)
- R3. Duties of justice (e.g., to support happiness in proportion to merit)
- R4. Duties of beneficence (to improve the condition of others)
- R5. Duties of self-improvement
- R6. Duties not to injure others³

BOX 2.5 Bernard Gert's 10 Moral Rules

- G1. Don't kill.
- G2. Don't cause pain.
- G3. Don't disable.
- G4. Don't deprive of freedom.
- G5. Don't deprive of pleasure.
- G6. Don't deceive.
- G7. Keep your promise (or don't break your promise).
- G8. Don't cheat.
- G9. Obey the law (or don't disobey the law).
- G10. Do your duty (or don't fail to do your duty).⁴

Additional Elements of Common Morality

BOX 2.6 Types of Moral Judgments

1. **Permissible.** One is morally permitted, but not morally required, to perform an action. An engineer might decide to take a job with Company X rather than Company Y, but both actions are permissible. It would also be permissible to take neither job.
2. **Impermissible.** An action that one is morally required not to do. An engineer must not be a part of an undisclosed conflict of interest.
3. **Obligatory.** An action one is morally required to do. An engineer must disclose an actual or a potential conflict of interest.
4. **Supererogatory.** An action that is praiseworthy if one does it, but not morally required. An engineer designs a parking lot for a nonprofit organization without charging a fee. Sometimes we call these actions ones that go “above and beyond the call of duty.”

Moral Theories

BOX 2.8 Davis' Eight Moral Tests

- **Harm Test.** Does this option do less harm than any available alternative?
- **Publicity Test.** Would I want my choice of this option published in the newspaper?
- **Defensibility Test.** Could I defend my choice of this option before a Congressional committee, a committee of my peers, or my parents?
- **Reversibility Test.** Would I still think my choice of this option is good if I were one of those adversely affected by it?
- **Virtue Test.** What kind of person would I become if I chose this option often?
- **Professional Test.** What would my profession's ethics committee say about this option?
- **Colleague Test.** What would my colleagues say when I describe my problem and suggest this option as my solution?
- **Organization Test.** What would the organization's ethics officer or legal counsel say about my option?

The Utilitarian Approach

- What is utilitarianism?

The Utilitarian Approach

- We should maximize overall well-being
- determine the population/audience

The Cost-Benefit Test

- Course of action that produces the greatest benefit or utility relative to cost should be chosen

BOX 2.9 Applying the Cost-Benefit Test

1. Identify the available options that can provide a solution to the problem under consideration.
2. Assess the costs (measured in monetary terms) and the benefits (also measured in monetary terms) of each option. The costs and benefits must be assessed for the entire audience of the action, or all who are affected by the decision.
3. Make the decision that is likely to result in the greatest benefit relative to cost; that is, the course of action chosen must not be one for which the funds spent on implementing the action could be spent on another action that would better resolve the problem under consideration.

The Test of Maximizing Good Consequences

- Will this particular course of action result in more good than any alternative course of action that is available in this situation?

BOX 2.10 Applying the Test of Maximizing Good Consequences

1. Identify the available options in this situation.
2. Determine the appropriate audience for the options, keeping in mind the problems in determining the audience.
3. Decide which available option is likely to bring about the greatest good for the appropriate audience, taking into account the harms as well as benefits.

The Rules and Practices Test

- It is one thing to ask about the utility of the consequences of a single action, and another thing entirely to ask about the utility of the consequences of a general practice, as this practice is enshrined in a rule or set of rules

BOX 2.11 Applying the Rules and Practices Test

1. Identify the established practice, if any, that applies to the appropriate audience in this situation. If the practice promotes utility better than any alternative practice, it should be followed.
2. If there is no applicable practice, select the one whose support in this situation is likely to have the best long-run consequences, all things considered.
3. Follow the justified practice in this situation, unless you think this might be a situation in which exception can justifiably be made on utilitarian grounds.

What are the Negatives/Problems of Utilitarian Approach? Examples?

The Respect for Persons (RP) Approach

- Act so that you respect all humans as free and equal moral agents
- Moral agent is a normal adult human being who, in contrast to inanimate objects, can formulate goals or purposes of his or her own

The Golden Rule Test

- Universalization Principle
- Reversibility
- “Do unto others as you would have them do unto you”
- Problems?

BOX 2.12 Applying the Golden Rule Test

1. Identify the action that is to be tested by applying the Golden Rule.
2. Ask whether you would be willing to have a similar action done when you are the recipient of the action, assuming that your values and those of others are similar.
3. If you are willing to be the recipient of your contemplated action, the action is morally permissible by the Golden Rule.

The Self-Defeating Test

- If everyone else did what I am doing, would this undermine my ability to do the same thing?
- If I must say yes to this question, then I cannot approve others doing the same kind of thing that I have done, and thus universalizing my action would be self-defeating.
- Problems?

BOX 2.13 Applying the Self-Defeating Test

1. Identify the action you want to test by the Self-Defeating Test.
2. Ask whether the action would be self-defeating if everyone did it, either because (a) the action could not be performed if everyone did it, or (b) the purpose you have in performing the action would be undermined if everyone did it.
3. If the action fails either (a) or (b), it is impermissible. If not, it is permissible.

The Rights Test

- We should honor the rights of people that are necessary for them to exercise their moral agency and to pursue their well-being
- Rights -> duties

BOX 2.15 Applying the Rights Test

1. Identify the action or rule to be evaluated and the available options.
2. Determine what options are available and what rights are at stake in each of the options.
3. Determine the place in the hierarchy of rights of the rights at stake and whether the rights are violated or infringed.
4. Identify the action or rule that will produce the least serious violations or infringements of the most significant rights.
5. Make a choice that seems likely to produce the least serious rights infringements or violations, all things considered.

Problem of Conflicting Rights

BOX 2.14 Gewirth's Hierarchy of Rights

- **Tier 1.** The most basic rights, the essential preconditions of action: for example, life, physical integrity, and mental health.
- **Tier 2.** Rights to maintain the level of purpose fulfillment one already has, such as the right not to be deceived or cheated, the right to informed consent to unusual risks, the right not to have possessions stolen, the right not to be defamed, and the right not to suffer broken promises.
- **Tier 3.** The rights necessary to increase one's level of purpose fulfillment: for example, the right to attempt to acquire property and wealth.

What is virtue?

The Virtue Ethics Approach

- Virtue - a dispositional trait - a character trait that disposes or inclines a person to do the right thing
- Virtue ethics - act in the way the good or virtuous person would act in the circumstances
- Middle position (or mean) between vices (Aristotle):
miserliness – generosity - spendthrift

BOX 2.16 Core Virtues and Selected Character Strengths

1. Wisdom (creativity, open-mindedness, perspective)
2. Courage (bravery, persistence, vigor or energy)
3. Humanity (love, kindness)
4. Justice (citizenship, fairness, leadership)
5. Temperance (modesty, self-control)
6. Transcendence (appreciation of beauty and excellence, gratitude, spirituality)¹³

Professional Virtues

- Professional Care – protect and promote the well-being
- Respect for Nature - to show consideration for; avoid violation of; treat with deference

Strengths of Virtue Ethics

- The Rational and Intuitive Elements in Morality
- Moral Exemplars
- Moral Habituation

- Open-Ended Situations

Virtue Ethics: An Application

